

REDUCTION IN FORCE

This regulation is applicable to licensed and non-licensed employees with specific procedures for each category, outlined below.

A. Definitions of Terms Applicable to Reductions in Force Impacting Licensed Employees

1. Licensed Employees. Licensed employees means teachers as defined by and licensed by the Virginia Department of Education (VDOE).

2. Evaluation Ratings. Evaluation ratings shall mean Summative Ratings of Highly Effective, Effective, Approaching Effective, and Ineffective on a formal evaluation or Exemplary, Proficient, Developing/Needs Improvement, and Unacceptable if the most recent completed evaluation occurred prior to the change to the evaluation rating categories.

3. Seniority. Seniority shall be that period of time beginning with the most recent period of continuous full-time service as a licensed employee in Loudoun County Public Schools (LCPS), including authorized paid leave under Policy 7716 (Family & Medical Leave Act), Policy 7717 (Organ and Bone Marrow Donation Leave) and authorized leave without pay under Policy §7722— (Leave Without Pay), as well as authorized leave under Policy 7726 (Military Leave). For the purposes of this policy only, an employee who worked the equivalent of 160 work/teaching days in a school year will be credited with one full year of service. If a tie exists, the tie shall be broken in the sequential order that follows:

- a. official beginning date of employment as shown on in the employee's HR record;
- b. total full-time service with LCPS as a licensed employee; and
- c. selection based on the last four digits of the employee's social security number, the highest number being most senior and so on in descending order.

4. Active Teaching Area. The Active Teaching Area shall be the teaching endorsement area (as shown on the current VDOE license) within which the teacher is teaching each time this policy is applied.

5. Other Teaching Area. A teaching endorsement area (as shown on the current VDOE license) within which the teacher has had teaching experience more than five (5) years prior to the reduction announcement. In such cases, the teacher must

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submit a written request to the Chief Human Resources Officer (CHRO) for the inclusion of the additional endorsement area(s). In making a determination, the CHRO or their designee will consider the additional factors, including (but not necessarily limited to) the following:

- a. prior satisfactory performance,
- b. teacher's willingness to attain the training as needed, and
- c. the need for teachers in the other endorsement area(s).

B. Reduction in Force Process for Licensed Employees

1. When reductions in force are necessary, reductions shall be made in the following order without regard to probationary or continuing contract status:

- a. Least senior Licensed Employees within the endorsement or programmatic area to be reduced, who have received Unsatisfactory Evaluation Ratings on their most recent formal evaluation cycle.
- b. If no employees meet the criteria in paragraph B.1.a. above, then the least senior Licensed Employees within the endorsement or programmatic area to be reduced, who have received Developing/Needs Improvement Evaluation Ratings on the most recent formal evaluation cycle.
- c. If no employees meet the criteria in paragraphs B.1.a. or B.1.b. above, then the least senior Licensed Employee within the endorsement or programmatic area to be reduced.

2. Seniority Lists. In the event of a reduction in force, seniority lists based on categories of endorsement areas shall be created. The seniority lists will be shown in ascending order of seniority, with licensed employees reassigned to teaching positions being placed on a list according to Active Teaching Area and, if applicable, Other Teaching Area. Licensed Employees subject to reduction in force due to Approaching Effective or Ineffective Evaluation Ratings in their Active Teaching Areas shall not precede other employees with Highly Effective or Effective Evaluation Ratings in the most recent evaluation cycle or Other Teaching Area seniority lists. The lists shall be comprised of the following categories of endorsement areas:

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- a. Elementary endorsements
- b. Elementary and Middle School endorsements
- c. Subject area endorsements
- d. Special area endorsements such as Special Education, Reading, E.L., Drivers Education, Gifted or other special areas as designated by the Division Superintendent
- e. A Licensed Employee holding the comprehensive elementary endorsement of K-7 or 1-7 will be listed first in the category that is appropriate to the active assignment of the employee, either NK-4 or 4-8. Placement on other lists will be contingent upon the provisions found in section B, items 5a and 5b above

Licensed Employees will not be placed on any seniority list for an area in which they do not possess a current endorsement.

3. Transfers. Transfers will be made within the school division insofar as possible to accommodate the retention of Licensed Employees having seniority in areas affected by the reduction in force. The selection of Licensed Employees to be transferred will be governed by the need to maintain the maximum effectiveness of the facilities involved as determined by the Division Superintendent.

- a. Should a Licensed Employee offered an assignment by transfer to a position within their Active Teaching Area refuse or decline the assignment, the Licensed Employee's employment will be recommended for termination and the employee will not be eligible for recall.
- b. Should a Licensed Employee refuse an assignment by transfer to a position identified as the employee's Other Teaching Area, they will be removed from that seniority list, but will be listed for recall in the Active Teaching Area until June 30 of the following calendar year, in accordance with the provisions of paragraph D.2, below.

4. Exceptions. The provisions of section C of this regulation shall not apply where the employment of Licensed Employees whose specialized skills, including skills necessary to teach higher-level courses, and/or active assignment is essential to the

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effective operation of the school or program. The determination of essential personnel shall be at the discretion of the Division Superintendent.

5. Notification. All Licensed Employees scheduled for reduction in force under this regulation will be notified at the earliest possible date. Licensed employees scheduled for reduction in force as a result of budget considerations will be notified within two weeks of the approval of the school budget by the appropriating body, but no later than July 1.

C. Layoffs and Recall Process for Licensed Employees.

1. Layoff. A Licensed Employee on layoff is separated from employment and is not eligible for salary or any other benefits.

2. Recall. The provisions for recall shall apply to continuing contract teachers only.

- a. Licensed Employees under probationary contract, as described in Policy 7650, shall have no recall rights but will be given consideration for reemployment at the discretion of the School Board upon recommendation of the Division Superintendent.
- b. Licensed Employees under continuing contracts who are impacted by a reduction in force shall be included on a recall list by Active Teaching Area and ranked in order of seniority. The recall list(s) are confidential in nature, shall be prepared by licensed area, and are maintained by the Department of Human Resources and Talent Development (HRTD). Affected Licensed Employees desiring to know their rank position on the list may contact HRTD. Endorsements obtained subsequent to the preparation of seniority lists will not be recognized and placed on the appropriate seniority lists until all eligible Licensed Employees on said lists are either recalled or forfeit the rights of recall.
- c. When position vacancies occur, the eligible Licensed Employee with the greatest seniority and an Effective or higher Evaluation Rating will be offered the position. Licensed Employees on the recall list who have Approaching Effective Evaluation Ratings in the last evaluation cycle shall be eligible for recall after all employees rated Effective or higher on the recall list have been recalled. Licensed Employees on the recall list who have Ineffective

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Evaluation Ratings in the last evaluation cycle shall be eligible for recall from most senior to least senior after all employees with higher Evaluation Ratings have been recalled.

- (i) If the opening is in a Licensed Employee's Active Teaching Area, they must accept the assignment or lose all recall rights. If the opening is in a Licensed Employee's Other Teaching Area, they have the option of not accepting the assignment; but if the offer is not accepted, the Licensed Employee's name will be removed from the recall list in that teaching area.
- (ii) When an eligible Licensed Employee is recalled, they will be notified by certified mail sent to his/her last known address on record with HRTD. If the offer of reemployment is not accepted in writing within ten (10) days of receipt of notice, rights of recall will be forfeited. If notice of recall is undeliverable, rights of recall will be forfeited. It shall be the responsibility of the Licensed Employee to maintain an accurate address with HRTD.

d. Licensed Employees will not be eligible for recall if:

- (i) The Licensed Employee, subsequent to separation of employment, makes contractual commitments with another school, school division, or other employer from which release cannot be obtained prior to July 15. This restriction shall apply to the eligibility period for recall (June 30 of the following calendar year).
- (ii) The Licensed Employee fails to maintain a valid VDOE license.
- (iii) The Licensed Employee, subsequent to separation of employment, becomes unable to qualify for a position in their licensed area or assignment.
- (iv) The Licensed Employee has not been recalled by June 30 the calendar year following the reduction in force.

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- e. Upon return to employment on recall, eligible Licensed Employees will resume an appropriate placement on the salary schedule.

D. Reduction-In-Force Process for Non-Licensed Employees

1. For purposes of this regulation, “Non-Licensed Employee” means any employee on the universal scale who is assigned to an LCPS position that does not require a VDOE license.

2. When it is determined that a reduction in force of Non-Licensed Employees is necessary, the impacted positions shall be identified by the Division Superintendent or their designee, taking into account the following considerations:

- a. The necessity of the position to accomplish mandates
- b. The necessity of the position to provide expected services and school division goals
- c. Recency of position approval

3. The provisions of Section E of this regulation shall not apply to Non-Licensed Employees whose position is essential to the effective operation of the school program. The determination of essential personnel shall be solely at the discretion of the Division Superintendent.

4. Full-time Non-Licensed Employees are to be reduced in force based upon evaluation of the following criteria:

- a. Demonstrated satisfactory performance with an overall rating of “Effective/Meets Job Requirements” or “Highly Effective/Exceeds Job Requirements” in the last two evaluations on file with HRTD. Employees identified as not meeting job requirements for overall performance will be the first selected for a reduction in force, regardless of length of service:
 - b. Length of continuous service with LCPS,
 - c. Transferability of skills to other positions within the school division.
5. Employees are credited for their time actually worked in full-time status for the school division.

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E. Reduction-in Force Procedures for Non-Licensed Employees. Using the list of positions to be eliminated as determined by the Division Superintendent, HRTD will follow the listed procedures:

1. Develop a list of employees to be reassigned. This list will include:
 - a. the current positions of the impacted Non-Licensed Employees,
 - b. the impacted Non-Licensed Employees' lengths of continuous service with LCPS, and
 - c. any transferable skills and qualifications of each impacted Non-Licensed Employee.
 - d. Employees who have not demonstrated satisfactory performance with an overall rating of "Effective/Meets Job Requirements" or "Highly Effective/Exceeds Job Requirements" in either of their last two evaluations will be separated from employment with LCPS with no consideration for reassignment.
2. Develop a list of retained comparable positions and position vacancies as a result of resignations and retirements.
3. Offer impacted Non-Licensed Employees a position for which they are qualified at the same or lower level of the positions reduced-in-force, if available, by seniority.
4. If an impacted Non-Licensed Employee declines the offered position, the employee will cease to be considered for reassignment.
5. Non-Licensed Employees impacted by a reduction in force may elect to apply for transfer, promotion, or demotion to other LCPS vacancies in accordance with applicable LCPS policies and procedures.
6. Impacted Non-Licensed Employees who cannot be reassigned by the first school day for students of the following school year under this procedure shall be separated from LCPS.

F. Personnel Record for all Employees. To avoid negative implications with regard to the professional record of an employee reduced under this policy, the personnel

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record of the employee and the minutes of the School Board will clearly show that such separation of employment was due to a reduction in force.

Issued: 8/13/24

Legal Reference: Code of Virginia §§ [22.1-304](#), [22.1-305](#); Code of Virginia [2.2-3900](#); [Title IX of the Civil Rights Act](#); [20 USC §1681](#); [Title VII of the Civil Rights Act](#); [42 USC §2000e](#); [34 C.F.R. Part 106](#); [Age Discrimination in Employment Act](#); [Title I and Title V of the Americans with Disabilities Act](#); [Title II of the Genetic Information Nondiscrimination Act](#)

Cross Refs: Policy [7716](#), Family & Medical Leave Act; Policy [7717](#), Organ and Bone Marrow Donation Leave; Policy [7722](#) Leave Without Pay; Policy [7726](#), Military Leave